

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2025PRTR055119: THE PETERSON FAMILY TRUST DATED FEBRUARY 7 1990
09/17/2026 in Department J6
Demurrer to Verified Petition**

The court intends to:

Overrule the demurrer as to the first, second, third, fourth, fifth, sixth, eighth, ninth and tenth causes of action.

As to the tenth cause of action for unjust enrichment the Court construes the cause of action as a quasi-contract seeking restitution and overruled the demurrer as to the tenth causes of action.

Sustain the demurrer as to the seventh, eleventh, and twelfth causes of action with leave to amend.

As to the seventh cause of action for Termination of Agreement. Termination of Agreement is not a cause of action. Petitioner appears to be alleging a cause of action for either breach of contract or rescission.

As to the eleventh cause of action for unconscionability, Petitioner has made no argument that unconscionability is a recognized affirmative claim for damages.

As to the twelfth cause of action for intentional infliction of emotional distress, the Petition does not allege facts as to extreme and outrageous conduct.

Petitioner to file an Amended Petition on or before 10/16/26, if petitioner so chooses.

The court sets hearing on the Verified Petition, or Amended Verified Petition, on 12/10/26 at 9:00 a.m. in Department J6.